

SENATE BILL 2330

By Watson

AN ACT to amend Tennessee Code Annotated, Title 3,
Chapter 13; Title 3, Chapter 14 and Title 3,
Chapter 7, relative to access to information.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 3, Chapter 7, is amended by adding the following as a new section:

3-7-115. Data access to records and information systems.

(a) For purposes of this section:

(1) "Agency":

(A) Means the administrative office of the courts and any department, agency, board, commission, office, or other instrumentality of the executive branch of state government, including the departments of state and the treasury; and

(B) Includes, but is not limited to, the following entities:

(i) Tennessee education lottery corporation, created by § 4-51-101;

(ii) Sports wagering council, created by § 4-49-105;

(iii) Alcoholic beverage commission, created by § 57-1-102;

(iv) Wildlife resources agency, created by § 70-1-301; and

(v) Tennessee higher education commission, created by § 49-7-201;

(2) "Data system" means any information system, database, case-management system, or comparable electronic record system used or maintained by an agency in the administration of its programs; and

(3) "Fiscal review committee staff" means the executive director of the fiscal review committee and employees of the committee acting within the scope of their official duties.

(b) Notwithstanding any law to the contrary, and subject to subsection (d), fiscal review committee staff shall have access to all information and records, confidential or otherwise, of any agency, in whatever form they may be, that are directly related to the performance of the committee's statutory duties, including, but not limited to, direct electronic access to all agency data systems and databases containing programmatic, financial, contractual, or performance-related information.

(c) Access under subsection (b):

(1) Includes the ability to inspect, examine, query, and retrieve information and records maintained in paper, electronic, or other form, including:

(A) Administrative records, contracts, grant agreements, and related documents;

(B) Financial and accounting records, including transaction-level data;

(C) Program eligibility, utilization, outcome, and performance data; and

(D) Records and data housed in enterprise, shared, or integrated data systems maintained by or on behalf of an agency; and

(2) Must be provided as requested by the fiscal review committee staff through:

(A) Direct, secure electronic access to relevant data systems and databases;

(B) Provision of data extracts, reports, or other machine-readable files; or

(C) On-site access to systems and records at agency locations, when necessary to protect system integrity or data security.

(d) This section does not require an agency to disclose information or provide system access where disclosure to fiscal review committee staff is expressly prohibited by state law, federal law, a federal grant or participation agreement that has the force of law, or by court order.

(e) If an agency asserts that state law, federal law, or court order prohibits disclosure of requested information or denies system access:

(1) The agency shall, within ten (10) business days of the request, provide to the fiscal review committee staff a written explanation identifying:

(A) The specific legal authority relied upon; and

(B) The scope of information or access claimed to be restricted;

and

(2) The agency and the fiscal review committee staff shall make reasonable efforts to identify:

(A) Redacted, de-identified, aggregated, or limited-access data that may be provided consistent with applicable law or court order; and

(B) Any technical or procedural accommodations, including on-site review or restricted-use workspaces, that allow the committee to perform its duties while maintaining legal protections.

(f)

(1) Information and records obtained by fiscal review committee staff under this section that are otherwise confidential under state or federal law, and for which the disclosure to fiscal review committee staff is not prohibited by state or federal law or court order pursuant to subsection (d), retain their confidential status while in the possession of the committee and are not public records under title 10, chapter 7.

(2) Fiscal review committee staff shall maintain appropriate safeguards for confidential information, including training, access controls, and secure storage and transmission consistent with any applicable state information-security standards.

(3) Confidential information and records obtained under this section must be used solely for the performance of the committee's statutory duties. Fiscal review committee staff shall not disclose such confidential information and records to any person, except:

(A) In aggregate, de-identified, or summary form in reports to the general assembly; or

(B) As otherwise expressly authorized by law.

(g) Unless a shorter period is required under other law, an agency shall provide information or access requested by fiscal review committee staff as soon as practicable and without unnecessary delay, and in no event more than fifteen (15) business days after actual receipt of the request, unless the agency and committee mutually agree to an alternative schedule for voluminous or technically complex requests.

(h) This section does not:

(1) Authorize fiscal review committee staff to alter or update agency data systems or records;

(2) Diminish the authority of the comptroller of the treasury, the office of legislative budget analysis, or any other legislative office that has existing statutory access to agency data; or

(3) Limit the ability of the general assembly to enact more specific data-access provisions for particular programs, agencies, or subject-matter domains.

(i) The fiscal review committee staff may request services or advice from the office of legislative information systems and the office of legal services to assist the committee in the committee's implementation and administration of this section.

(j) Within thirty (30) days of the effective date of this act, and not later than January 1 of each year thereafter, all agencies shall provide in writing to the fiscal review committee staff a comprehensive listing of all data systems and databases used by the agency, including, but not limited to, the names of all data sets contained within any such data system or database, the types of data within each data set, and an explanation of the actual or potential uses of such data sets.

SECTION 2. Tennessee Code Annotated, Section 3-14-202(h), is amended by adding the following as a new subdivision:

(3) The commissioner of finance and administration shall provide the office of legislative budget analysis with full access, including access to budget requests submitted by the various departments and agencies, to the following:

(A) Historical data from the state's Budget Entry Analysis and Reporting System (BEARS);

(B) The state's Sherpa budget formulation and management system, or any successor budget management system; and

(C) Any information or data held by the office of evidence and impact (OEI), or any successor office.

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.